

TOWN OF LUNENBURG

FISCAL YEAR 2016



SPECIAL TOWN MEETING WARRANT

**Special Town Meeting
November 16, 2015 7:00 PM
Lunenburg High School Auditorium
1079 Massachusetts Avenue**

PLEASE BRING THIS WARRANT WITH YOU TO TOWN MEETING

FINANCIAL TERMS

UNRESERVED FUND BALANCE - Previously referred to as Surplus Revenue, Excess and Deficiency Account, or E & D Account. The amount by which the cash, accounts receivable and other assets exceed the liabilities and reserves.

FUND BALANCE AVAILABLE FOR APPROPRIATION - (Free Cash) Unreserved Fund Balance less any uncollected prior year's property taxes, and less any unprovided for or overdrawn accounts. This must be certified as available funds by the State Director of Accounts before it can be voted in lieu of taxes.

PROVISION FOR ABATEMENTS AND EXEMPTIONS - (Overlay) Provision by Assessors for abatements and exemptions. This may not exceed 5% of the tax levy unless otherwise authorized by the State Tax Commission.

FUND BALANCE RESERVED FOR ABATEMENTS AND EXEMPTIONS SURPLUS (Overlay Reserve) Any unused balances in the Provision for Abatements and Exemptions Account is available for appropriation.

RESERVE FUND - This fund is used by the Finance Committee to provide for extraordinary or unforeseen expenditures. The total amount appropriated in any one year may not exceed 5% of the tax levy. No direct drafts against this fund can be made, but transfers from the fund can be authorized by the Finance Committee.

STABILIZATION FUND - Monies placed (voted) into a Stabilization Fund may be appropriated at an Annual Town Meeting by a two-thirds vote for any lawful purpose. This account is sometimes referred to as the "Town's savings account".

CHERRY SHEET - The Cherry Sheet is named for the cherry colored paper on which the State notifies the cities and towns of the estimated County and State Assessments and the estimated State distributions to be used in determining the tax rate as an offset to amounts that would otherwise be raised by taxation.

CITIZEN'S CHECK LIST - To Be Considered On Each Vote

- ✓ **IS IT NECESSARY?** Or is it something that is not really needed or perhaps already being provided by a private or public group?
- ✓ **CAN WE AFFORD IT?** Remember, there is no limit to what we would like, but there is a limit on what we can afford.
- ✓ **WHAT WILL IT COST ULTIMATELY?** Many proposals are like icebergs -- only a small fraction of the total cost is apparent on the surface.
- ✓ **HOW WILL IT AFFECT BASIC LIBERTIES?** If it imposes unreasonable or illegal restraints on your life or that of others, it should be vigorously opposed.
- ✓ **IS IT IN THE BALANCED BEST INTEREST OF ALL?** If it is designed to benefit a small group or special interest, while taking unfair disadvantage of others, work for its defeat.
- ✓ **IS IT A "FOOT-IN-THE-DOOR" PROPOSITION?** Comprising a little now may bring an oppressive burden later, either in more regulations or more taxes or both.
- ✓ **DOES IT PLACE TOO MUCH POWER IN THE HANDS OF ONE INDIVIDUAL OR GROUP?** Once decisive power is granted to a non-elected public official, a commission or a municipal authority, the private citizens lose effective control.
- ✓ **DOES IT RECOGNIZE THE IMPORTANCE OF THE INDIVIDUAL AND MINORITY OPINION?**
- ✓ This is the cornerstone of our Republic.

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**TOWN OF LUNENBURG
SPECIAL TOWN MEETING WARRANT
NOVEMBER 16, 2015**

Worcester, ss:

To: **John E. Baker, Constable of the Town of Lunenburg, in the county of Worcester, Greetings:**

In the name of the Commonwealth of Massachusetts, you are hereby directed to notify and warn the inhabitants of the Town of Lunenburg, qualified to vote in elections and town affairs, to meet in the Lunenburg High School Auditorium in said Lunenburg on Monday, the 16th day of November next, at 7:00 o'clock in the evening (7:00 P.M.), for the purpose of taking action on the Town Meeting Warrant, and then and there to act on the following articles, viz:

SPECIAL TOWN MEETING ARTICLES

ARTICLE 1. To see if the Town will vote **to raise and appropriate or transfer from available funds, a sum of money to fund the first year of the FY'15, FY'16 and FY'17 Lunenburg Professional Firefighters PFFM, Local 4358A Collective Bargaining Agreement dated July 1, 2014 – June 30, 2017**, or take any action relative thereto. (Submitted By Town Manager) Board of Selectmen recommends approval _____

ARTICLE 2. To see if the Town will vote **to raise and appropriate, or transfer from available funds, a sum of money for payment of prior year expenses**; or take any other action relative thereto. (Submitted by Town Accountant) Board of Selectmen recommends approval _____

ARTICLE 3. To see if the Town will vote **to appropriate and transfer from available funds all sums of money necessary to amend the amounts voted for the Town's FY2016 Budget, under Article 15 of the May 2, 2015 Annual Town Meeting**, or take any other action relative thereto. (Submitted by Town Manager) Board of Selectmen recommends approval _____

ARTICLE 4. To see if the Town will vote **to rescind the sum of \$284,263.59, the remaining borrowing authorization, from Article 2 of the 11/06/2001 STM for engineering and construction of sewers**; or take any other action relative thereto. (Submitted by Town Accountant) Board of Selectmen recommends approval _____

ARTICLE 5. To see if the Town will vote **to rescind the sum of \$28,708, the remaining borrowing authorization, from Article 4 of the 05/07/2005 STM for engineering and construction of sewers**; or take any other action relative thereto. (Submitted by Town Accountant) Board of Selectmen recommends approval _____

ARTICLE 6. To see if the Town will vote **to rescind the sum of \$125,000, the remaining borrowing authorization, from Article 5 of the 10/01/2002 STM for the renovation of the Turkey Hill Middle School heating system**; or take any other action relative thereto. (Submitted by Town Accountant) Board of Selectmen recommends approval _____

ARTICLE 7. To see if the Town will vote **to rescind the sum of \$56,550, the remaining borrowing authorization, from Article 4 of the 05/03/2003 STM for the construction and/or renovations of the heating system at the Thomas Passios Elementary School**; or take any other action relative thereto. (Submitted by Town Accountant) Board of Selectmen recommends approval _____

ARTICLE 8. To see if the Town will vote **to authorize the enactment of a bylaw regulating the use of vehicles on Whalom Lake**

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Section 1. Purpose and Scope

The purpose and scope of this bylaw is to protect the safety of the public, to prevent the destruction of aquatic life, waterfowl or other wildlife, the decay of water quality and damage to abutting private and public lands by the inappropriate use of motor vehicles, recreation vehicles or snow vehicles on the waters or frozen waters of Whalom Lake; to promote voluntary compliance with all applicable laws relating to the operation of motor vehicles and when necessary to deter noncompliance through fines and penalties.

Section 2. Definitions

- a) Motor Vehicle: any motor vehicle as defined in M.G.L Chapter 90, § 1.
- b) All-terrain vehicle: means a motorized recreational vehicle designed or modified for travel on three or four low pressure tires and having a seat designed to be straddled by the operator and handlebars for steering control, and recreational vehicle or off-highway vehicle as defined in CMR 323, § 3.02 and governed by M.G.L Chapter 90B.
- c) Snow vehicle: a motor vehicle designed to travel over ice or snow, having a curb weight of not more than 453 kilograms or 1000 pounds, driven by track or tracks in contact with the snow or ice and steered by a ski or skis in contact with the snow or ice as defined in CMR 323, § 302 and governed by M.G.L Chapter 90B.
- d) Operation: (1) to ride in or on and control the operation of, or to maintain, suffer, supervise, or permit the operation of, or to push a snow vehicle or a recreational vehicle, or, (2) in the case of a motor vehicle, any person who makes use of any mechanical or electrical agency, which alone or in sequence will set in motion the motive power of the vehicle, whether or not the engine is not running; or (3) any person who utilizes any combination of actions that would set the vehicle in motion.
- e) Public Access: shall mean the public access located in the City of Leominster or any other place where Whalom Lake can be accessed by the public.
- f) Law Enforcement Officer: any police officer, constable or other officer authorized to make arrests or serve process provided he is in uniform or displays his/her badge of office.
- g) Board: Town of Lunenburg, Board of Selectmen

Section 3. Operation of Snow Vehicles and All-Terrain Vehicles

- A. No person, or group of persons shall operate, or cause to be operated on the waters or frozen waters of Whalom Lake, any snow vehicles that are not in compliance with Massachusetts CMR 323 § 2.01 to 3.09 & MGL c. 90 § 21 to 35.
- B. When the Town of Lunenburg or any other agency or state agency duly authorized by law has posted the waters or frozen waters of Whalom Lake to prohibit access for or use of snow vehicles or all- terrain vehicles, no person, or group of persons shall operate any snow vehicle or all-terrain vehicle upon such waters or frozen waters. In the absence of such a posting, persons utilizing water or the frozen water of Whalom Lake do so at their own risk and the Town of Lunenburg assumes no responsibility either implied or expressed for the safety of any person who voluntarily assumes a known and obvious risk inherent in such activities. No person shall operate a snow vehicle or all-terrain vehicle upon any frozen waters of Whalom Lake under any circumstance unless a minimum of five inches of solid ice cover is present. The operator shall determine the thickness of the ice, and assumes all responsibility in undertaking an activity with an inherent and known risk.

Section 4. Operation of Motor Vehicles Prohibited

- A. No person, group of persons or organizations shall operate, or cause to be operated, any motor vehicle, as defined in MGL c. 90 § 1 on the waters or frozen waters of Whalom Lake.

Section 5. Public Access Only

- B. No Snow Vehicle or All-terrain vehicle shall enter upon Whalom Lake except by public access or by written permission by the landowner.

Section 6. Penalties

This bylaw may be enforced through any lawful means in law or in equity including, but not limited to, enforcement by criminal complaint or fines pursuant to G.L. C.40 § 21D, by the Board of Selectman, the Town Manager or their duly authorized agents, or any police officer. Whether enforced through criminal or civil process, the fine for a violation of this bylaw shall be three hundred dollars (\$300.) for each offense. (Submitted by Police Chief)

ARTICLE 9. To see if the Town will vote to enact a bylaw that restricts the public consumption of Marijuana or Tetrahydrocannabinol.

The bylaw shall consist of two sections:

Section 1: No person shall ingest or otherwise use or consume marijuana or tetrahydrocannabinol, (as defined in G.L. c.94C § 1, as amended,) other than a qualified patient with a valid medical certification of a debilitating condition, all as defined under state law, while in or upon a street, sidewalk, public way, footway, or pathway, passageway, stairs, bridge, park, playground, beach, recreation area, boat landing, public building, schoolhouse, school grounds, cemetery, parking lot, or any area owned by or under the control of the town; or in or upon any bus or other passenger conveyance operated by a common carrier; or in any town owned vehicle; or in any place accessible to the public. No person, including a qualifying patient with a valid medical certification of a debilitating condition, as defined under state law, shall smoke marijuana or tetrahydrocannabinol in any public place set forth herein.

Section 2: This bylaw may be enforced through any lawful means in law or in equity including, but not limited to, enforcement by criminal complaint of fines pursuant to G.L. c.40 § 21D, by the Board of Selectman, the Town Manager, or their duly authorized agents or any police officer. Whether enforced through criminal or civil process, the fine for a violation of this bylaw shall be three hundred dollars (\$300) for each offense. Any penalty imposed under this bylaw shall be in addition to any civil penalty imposed under G.L. c. 94C, § 32L. (Submitted by Police Chief)

ARTICLE 10. To see if the Town would vote to enact a bylaw authorizing the Board of Selectman to license suitable persons to carry on the business of pawnbrokers, buyers and sellers, or dealers in metal, as provided by MGL c.140 as amended.

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Article I. Buyers and Sellers of Goods and Electronics

Section I. Licensing Authority and Requirements

Subsection A.

The Board of Selectmen may license suitable persons to be pawnbrokers or buyer of goods pursuant to law. Such licenses shall not be valid to protect the holders thereof in a building or place other than that designated in the license, unless consent to removal is granted by the Board of Selectmen. Applications for new licenses under this bylaw may be filed at any time with the Board of Selectmen. Applications for the reissue of licenses already existing should be filed at least 30 days before the expiration of such licenses. Persons whose licenses have expired and have not been reissued will be liable to prosecution if carrying on business for which the license is required. Every person so licensed shall, at the time of receiving such license, file a bond as provided by MGL c. 140 § 77 as amended.

Subsection B.

Persons who engage in or carry on the business of lending money on mortgages, deposits or pledges of wearing apparel, jewelry, ornaments, household goods or other personal property, or of purchasing such property on condition of selling the same back again at a stipulated price, when the property so mortgaged, pledged or purchased is deposited with the lender, must be licensed as pawnbrokers. This provision, however, does not apply to loans made on stocks, bonds, notes or other written or printed evidence of ownership of property or of indebtedness to the holder or owner of such securities. (MGL c. 140, § 70 – 85)

Section II. Interest Rates

- A. Licensed pawnbrokers may charge interest at the rate of 3% per month, and in no event may they charge more than the rate allowed by the Massachusetts Commissioner of Banks.
- B. No such pawnbrokers shall charge or receive any greater rate of interest, and interest shall be determined on the precise sum advanced by the lender.
- C. No pawnbroker shall make or receive any extra charge or fee for storage, care or safekeeping of any goods, articles or things pawned with him. (MGL c. 140, § 78)

Section III. Police may enter and inspect premises and records

Subject to the laws of this Commonwealth, any officer of the Lunenburg Police may at any time, enter upon any premises used by a licensed pawnbroker or buyer for the purposes of his or her business, ascertain how he or she conducts his or her business and examine all articles taken in pawn or bought, or kept or stored in or upon said premises, and all books and inventories shall be exhibited to any above name whenever a demand shall be made for such exhibition. (MGL c. 140, §§ 73, 74) (Penalty for refusal, MGL c. 140, §§ 73, 74)

Section IV. Numbering of pawned articles

Every licensed pawnbroker or buyer shall, at the time of making any loan, attach a number to the article taken in pawn or bought, and shall make entry of such number in the book provided for in Section V. of this article.

Section V. Maintenance of records; contents; photo identification

- A. Every licensed pawnbroker or buyer shall keep a book of style and size in which shall be legibly written in ink, in the English language, at the time of making each loan, an account and description, including all distinguishing marks and numbers, and serial numbers of the goods, articles or things pledged or pawned, the amount of money loaned or paid thereon, the day and hour when it was pawned, the rate of interest to be paid on such loan, the number of such article as same. No entry made in said book shall be erased, obliterated or defaced. Electronic Record Keeping by the pawnbroker or buyer is acceptable as long as the records meet all the bylaw requirements.
- B. Every pawnbroker or buyer shall photograph any person pawning or pledging articles and keep such photographs with said books as part of his or her records. (MGL c. 140, § 79).

- C. For all transactions, every pawnbroker or buyer shall also require positive identification and shall record the type of identification presented and record the date of birth from any person pawning, pledging or selling any article. Positive identification shall mean any picture identification card issued by a governmental agency.

Section VI. Pledge cards; contents; retention

Each pledger shall be required by the pawnbroker to sign his or her name, age and address on a card. In the event that the pledger is unable to write, the pawnbroker shall fill in the name, age and address on such card, together with a notation stating that the pledger was unable to do so. Such card shall be retained seven years in an alphabetical index file by the licensed pawnbrokers.

Section VII. Copy of required record to pledger

Every pawnbroker or buyer shall, at the time of making such loan, deliver to the person who pawns or pledges any goods, articles or things, a memorandum or note signed by him, containing the substance of the entry required to be made in his book by the provisions of section V. and no charge shall be made or required by any pawnbroker or buyer for any such entry, memorandum or note. (MGL c. 140, § 80)

Section VIII. Daily report to police

Subsection A. Every licensed pawnbroker or buyer shall make out and deliver a report of transactions to the Lunenburg Police Chief or his designee, every day before the hour of 10:00 a.m., a legible and correct list containing an accurate description, including all distinguishable marks, numbers and serial numbers of all articles taken in pawn or bought during the preceding business day, the respective numbers of such articles as provided by Section IV of this bylaw, the amount loaned or paid thereon, and the time when such articles were pawned or bought. This report can be done electronically or faxed to the Lunenburg Police Chief or his designee. If during the preceding day no articles have been taken in by such pawnbroker or buyer, he or she is not required to report. This report can be done both electronically via the Internet and by fax.

Subsection B. If any goods or articles pawned or pledged and in the possession of a pawnbroker or buyer are subsequently determined to be stolen property by a member of the Lunenburg Police Department or the Massachusetts State Police, or if the rightful owner identifies property in the possession of a pawnbroker or buyer and the property so identified is confirmed to be stolen goods by a member of the Lunenburg Police Department or Massachusetts State Police, said property shall be returned to the rightful owner at no cost to such owner.

Section IX. Posting Requirements

Subsection A. Every licensed pawnbroker or buyer shall post in a conspicuous place in his or her shop or office a copy of the statutes, bylaws and police regulations relating to pawnbrokers/buyers to be furnished by the Lunenburg Police Department's Police Chief or designee, and shall put in some suitable and conspicuous place in his shop a sign having his/her name and occupation legibly inscribed thereon in lettering of a size and font so as to be easily and readily viewed by the public.

Subsection B. No pawnbroker or buyer shall place or maintain any signs or devices upon or in connection with his or her licensed premises indicating or tending to indicate that any form of business is conducted therein which he or she is not legally authorized to pursue.

Section X. Hours of Operation

Pawnbroker or buyer shall have his or her shop open for transactions between sunrise and 10:00 p.m. in the evening of any weekday and weekend. Under no circumstances can a pawnbroker or buyer operate after the hour of 10:00 p.m. to sunrise.

Section XI. Disposition of pledged articles

Subsection A. Articles deposited in pawn with a licensed pawnbroker shall unless redeemed, be retained by him on the premises occupied by him for his business for at least four months after the date of deposit.

Subsection B. After the expiration of the applicable period of time he may sell the article by public auction, apply the proceeds thereof in satisfaction of the debt or demand and the expense of the notice and sale, and pay any surplus to the person entitled thereto on demand.

Subsection C. No such sale of any article, which is not of a perishable nature, shall be made unless not less than 10 days prior to the sale a written notice of the intended sale shall have been sent by registered mail to the person entitled to the payment of any surplus as aforesaid, addressed to his residence, as appearing in the records of such pawnbrokers. Proof of registered mail shall be kept on file for one year after the date of sale.

Subsection D. No article taken in pawn by such pawnbroker or buyer shall be disposed of otherwise than as above provided, any agreement or contract between the parties thereto to the contrary notwithstanding.

Subsection E. Articles of personal apparel shall not be deemed to be of a perishable nature within the meaning of this section.

(MGL c. 140, § 71)

Section XII. Prohibitions

Subsection A. No pawnbroker or buyer shall make a loan, directly or indirectly, to a person under the age of 18, knowing or having reason to believe him or her to be such.

Subsection B. No pawnbroker or buyer shall loan money secured by deposit or pledge of a firearm, rifle, shotgun or machine gun.

(MGL c. 140, § 131B)

Subsection C. Unless otherwise qualified and licensed under MGL c. 140, no pawnbroker or buyer shall hold a license to sell, rent, or lease a firearm, rifle, shotgun, or machine gun.

Section XIII. Complaints, Disciplinary Action; Hearing

Subsection A. Complaints concerning licensed pawnbrokers or buyers shall be investigated by the Lunenburg Police Department under the direction of the Chief of Police.

Subsection B. In the event the Chief of Police determines that disciplinary action should be instituted against a licensed pawnbroker or buyer, the Chief of Police shall cause to be served upon the licensed pawnbroker or buyer notice as to the time, date and place of hearing, and of the charge with a statement of the reasons for the proposed disciplinary action. Hearings shall be conducted in accordance with law.

Section XIV. Suspension or Revocation of License

The Board of Selectmen may suspend or revoke licenses provided for by this article for any cause which the Board of Selectmen deems sufficient. Offenses which may result in the suspension or revocation of a pawnbroker's or buyer's license include but are not limited to the following:

- a) A violation of any section of this article.
- b) A violation of any provision of any statute or applicable law.
- c) Any substantial evidence demonstrating, in the opinion of the Board of Selectmen, that the license is no longer suitable.

Article II. Sale, Exchange or Purchase of Metals

Section I. Findings

The Town of Lunenburg finds that there is a cognizable risk for stolen metals to end up in the possession of even legitimate businesses which trade in metals, including precious metals. Certain criminals bring stolen metals, including precious metals, to dealers in jewelry and scrap metal. The victims of theft have only a small hope of recovering their property unless the people and entities who receive scrap metals and jewelry are regulated in a manner which identifies both the metal received by the dealers and the persons who deliver the metal to these dealers. There is an Internet alert system used by the Lunenburg Police Department, which reports stolen metals. Monitoring transactions within the town and identifying both the metals and the persons selling or delivering these metals will serve both to deter theft and to enable the Lunenburg Police Department to trace and recover stolen property and return it to the rightful owners.

Section II. Definitions

As used in Article II, the following terms shall have the meanings indicated:

ARTICLE: Any metal which is subject to Article II and is exchanged, sold, collected, bartered or received by a person dealing in metals.

CHIEF OF POLICE: The Chief of the Lunenburg Police Department or his designee.

EXCHANGE: Receiving, purchasing, selling or bartering metals, including precious metals and industrial scrap metals.

METAL: A chemical element that is malleable, opaque and ductile, usually solid, which has a characteristic luster, is a good conductor of heat and electricity, and can be melted or fused, hammered into thin sheets, or drawn into wires, e.g., copper, aluminum, gold, silver or iron or other metals.

PRECIOUS METAL(S): Any metal which is considered valuable, such as silver, gold, platinum, and copper, without regard to the form or amount of such precious metal.

BOARD: Board of Selectmen

Section III. License Required

a) No person shall collect, deal in, exchange, buy, or keep a shop or place for the exchange, purchase, sale or barter of metals, including precious metals and industrial metals, in any building or place within the limits of the town without having a license issued by the Board of Selectman. The license requirement and the other requirements of this Article II

shall not apply to commercial haulers having valid, current United States Department of Transportation stickers affixed to their vehicles.

b) Board of Selectmen may, for a fee set by said board and based upon an application devised by said board, license suitable persons to be dealers in and keepers of shops or locations for the purchase, sale or barter of precious metals at such places within the town as may be designated in such license. The Board of Selectmen may place reasonable conditions on such licenses which shall be inscribed on the face of the license. A license shall be limited to a specific address stated thereon. Subject to the notice and appeal provisions contained in 23 of this Article II, the Board of Selectmen may deny a license to any person who, in the exercise of his reasonable discretion, is unsuitable.

c) All metal dealer licenses shall expire annually on the last day in December. The license holders shall be responsible for submitting an application for license renewal with the license fee to the Board of Selectmen at least 30 days prior to the last day in December. Upon receipt of an application for renewal, the Board shall consider the performance of the licensee during the previous year and shall determine whether the licensee had been found in violation of this Article II and other bylaws and regulations of the town applicable to metal dealers.

d) The Board of Selectmen may promulgate reasonable regulations not inconsistent with this Article II which shall be binding upon all licensees. No regulation shall take effect until the expiration of 30 days from the date the regulation(s) is delivered or mailed to the person(s) then licensed. The Board of Selectmen shall deliver a complete set of regulations and any amendments thereto to the Town Clerk. The Town Clerk shall maintain the complete set of all regulations in a book available to the public.

e) The obligation to obtain a license as required by this section will take effect 45 days after approval by Town Meeting of this bylaw.

Section IV. Transactions with Minors

No licensee shall, directly or indirectly, exchange any metals with a person under the age of 18.

Section V. Waiting Period

No article exchanged, purchased or received shall be sold, or altered in appearance, form or substance until a period of at least twenty-one (21) days have elapsed from the date of its purchase or receipt. All articles exchanged, purchased or received must be made available to the Lunenburg Police Department upon request within 24 hours of such request, and the Police Department may investigate to determine if any article is, or may be, stolen property. This waiting period does not apply to scrap metal yards which are exempt from any waiting period.

Section VI. Daily Report

Every licensee shall electronically create and send to the Police Chief or his designee, on a form, in the manner and at the time prescribed by the Police Chief or his designee, a legible, a complete and accurate list containing an accurate description of all metal articles received by the licensee during the previous 24 hours. The description must include: the type of metal; the size and/or quantity; whether the article is or may be a precious metal; if applicable, whether the article is typically used by or associated with a male or female; the wording of any engraving; whether the article has any gems or precious stones; any identifying number and every other identifiable trait.

Section VII. Recordkeeping Requirements

A. Every licensee shall, at the time of making any exchange or receipt of any article, assign and attach a number to each article received and shall make entry of such number in the book described in Subsection B.

B. Every licensee shall keep a book in which shall be legibly written in ink, in the English language, at the time the licensee receives any article, the following information:

1) An account and description, including all distinguishing or identifying marks and numbers of every article received by the licensee.

2) The amount of money, if any, paid for the article.

3) The date and hour when it was received.

4) The name, age, permanent address and telephone number of the person from who purchased or received.

5) A copy of the document used to identify the person giving the article to the licensee.

A. Every licensee shall require positive identification from any person selling or exchanging any article. The licensee shall copy and record the type of identification presented and the date of birth from any person giving or exchanging any article. Positive identification means only a government-issued document with the person's name and photograph. The licensee shall photograph any person exchanging any article(s). A copy of the identification and the photograph shall be kept with the book required by this section as part of his records.

B. No entry made in the book required by this section shall be erased, obliterated or defaced in any manner whatsoever. The book shall at all times be open for the inspection by the Police Chief or any police officer. The licensee shall keep

and maintain all the records required by this Article II for a period of three years from the date of the last entry in any book.

Section VIII. Posting of Name, Occupation and License; Inspections

Every licensee shall post in some suitable and conspicuous place where he or she receives or exchanges articles, a sign having his/ her full legal name, and his/her business name, if different, and his/her occupation legibly described thereon in large letters. The current license shall also be so posted. The location where transactions occur, the store or shop and all articles exchanged and or kept therein or received therein and the book and documents required by this Article II, may at all times be examined by the Police Chief or any police officer at their request.

Article III. Violations and Penalties; Fees

Section I. Violations and Penalties

A. Whoever not having a valid license as required by this Article II, exchanges, collects, deals in or barter metals in any place or manner other than that designated in his license, or after notice to him that his license has been revoked, or whoever violates this Article II or any rule, regulation or restriction contained in his license, or any regulation promulgated by the Town of Lunenburg shall be subject to the fines and sanctions described in this section. Each day of such violation shall constitute a separate offense.

B. The fine for breach of the duty imposed by this Article II is three hundred dollars (\$300). Each day on which the person continues in violation shall be considered as a separate violation.

C. This Article II may also, at the discretion of the Chief of Police, be enforced by civil process or by noncriminal disposition as provided in MGL c. 40, § 21D. The Chief of Police or any Lunenburg Police Officer may issue tickets to enforce this Article II. If enforced civilly by ticket each day on which a violation exists shall be deemed to be a separate offense, and the violator shall be subject to the following fines:

- 1) First violation: \$150.
- 2) Second violation: \$200.
- 3) Third violation: \$300.
- 4) Fourth and each subsequent violation: \$300.

D. In addition to the penalties set forth above, the enforcing authority may seek an injunction from an appropriate court to restrain any violation of this Article II, any regulation promulgated by the Town of Lunenburg or any condition inscribed on a license.

E. The Board of Selectmen may suspend or terminate any license or refuse to renew any license for violation of this Article II, a regulation promulgated by the Town of Lunenburg or any condition inscribed on the license. The Board of Selectmen, if electing to take action under this section, shall use the procedure described in this section.

1) Notice of violation. Whenever it comes to the attention of the Board of Selectmen that a violation of this Article II, a regulation promulgated by the Town of Lunenburg or a condition inscribed on a license, the Board shall by written notice, deliver personally or send by certified mail to the licensee notify him of the violation and order the person to cease and desist. Depending on the severity of the violation as determined by him, the Board of Selectmen may suspend or terminate the license. The Board shall also provide notice described herein if it denies an application for a license stating the reasons therefor.

2) Contents of notice. The written notice to the licensee shall contain a description of the violation(s) and the date(s) of occurrence and a citation to the section of the ordinance, regulation or license condition which the licensee is alleged to have violated. The notice will, if applicable, describe what the licensee must do to comply, whether the Board of Selectmen intends to terminate the license and the effective date of the termination which shall afford the licensee at least seven days to file an appeal of the proposed termination to the Board. In the case of denial of a license, the notice shall state the reasons for the denial.

- 1) Appeal. Upon receipt of a notice of license termination, or denial, the licensee may, within seven days of receipt of the notice, file a written appeal by delivery or certified mail to the Board of Selectmen's office during the hours of 8:30 a.m. to 4:30 p.m. on days when Town Hall is open for business. When the Board of Selectmen receives an appeal, he or she shall appoint a neutral hearing officer who will take testimony from any persons with knowledge of the facts including any police officer and the appellant. The appellant may be represented by counsel and any person so testifying will be subject to cross examination. The proceedings will be governed by the rules of evidence applicable to an informal administrative hearing. The hearing officer will assure that an appropriate record, including any documents submitted, is made and kept. The decision of the hearing officer will be written and final.

A. In addition to the other actions available under this bylaw, the Board of Selectmen, subject to the process described in this section, may refuse to renew any license. The Board shall not issue a license to any person convicted of a felony.

Section II. License and Administration Fees

- 1) Buyer of Goods and Electronics Annually \$250.00
- 2) Buyer of Metal and Precious Metals Annually \$250.00
- 3) Pawnbroker License Annually \$1000.00

(Submitted by Police Chief)

ARTICLE 11. To see if the Town will vote **to add the below boded wording to Article XXIX Agricultural Commission,**

Section 1. Said Commission, once appointed shall develop a work plan to guide its activities. Such activities may include, but are limited to the following; encouraging the continued pursuit of agriculture in Lunenburg; promoting agricultural-based economic opportunities in Town; mediating, advocating, educating and/or negotiating on farming issues; working for the preservation of prime agricultural lands; **to oversee, operate or run a Farmers' Market;** and pursuing all initiatives appropriate to retaining farming in Lunenburg, or take any action thereto.

(Submitted by the Board of Selectmen)

ARTICLE 12. To see if the Town will vote **to authorize the Board of Selectmen to enter into alternative energy power purchase and/or net metering credit purchase agreements, including solar and wind energy and related net electricity metering credits, for terms of more than three years,** on such terms and conditions as the Board of Selectmen deem in the best interest of the Town; and **to authorize the Board of Selectmen to take all actions necessary to administer and implement such agreements;** or take any other action relative thereto.

(Submitted by Board of Selectmen/Town Manager)

ARTICLE 13. To see if the Town will **vote to delete Article XV, Salary Administration Plan, of General Bylaws and replace with a new Article XV, Salary Administration Plan,** as printed below, or take any other action relative thereto. (Submitted by Town Manager on behalf of Personnel Committee)

INSERT HERE

ARTICLE 14. To see if the Town will vote to raise and appropriate or transfer from available funds, a sum of money to the Stabilization Fund; or take any other action relative thereto. (Submitted by Town Manager)

ARTICLE 15. To see if the Town will vote to adopt a Non-Binding Resolution opposing the Northeast Energy Direct Project as printed below; or take any other action relative thereto. (Submitted by Board of Selectmen/ Town Manager)

Non-Binding Resolution Opposing the Northeast Energy Direct Project

WHEREAS, Kinder Morgan has proposed a new 36" high pressure gas pipeline through Massachusetts and New Hampshire, as part of a Northeast Energy Direct Project hereinafter called "the Project"; and

WHEREAS, the Project also proposes a new 12" high pressure (1460 psi) natural gas pipeline, which it calls the "Fitchburg Lateral", to be installed, not in Fitchburg, but in Lunenburg, Townsend, and Mason NH; and

WHEREAS, Lunenburg is already crossed by a Kinder Morgan pipeline hereinafter called the "South Lunenburg Lateral", which runs from Lancaster to the proposed southern terminus of the Fitchburg Lateral; and

WHEREAS, the South Lunenburg Lateral has already caused financial damage to Lunenburg citizens; and

WHEREAS, the completion of the Project appears to create a connection between the proposed Fitchburg Lateral and the South Lunenburg Lateral; and

WHEREAS, said connection could provide Kinder Morgan the opportunity to provide gas service to Worcester through Lunenburg including a possible future addition of a compressor station in Lunenburg, or other re-adaptation and re-use of the South Lunenburg Lateral; and

WHEREAS, Kinder Morgan has been silent about its plans to create such a connection, despite its proposing a metering station in Lunenburg at the Southern terminus of the proposed Fitchburg Lateral in its Resource Report 1 filed with the Federal Energy Regulatory Commission; and

WHEREAS, the currently proposed pipeline route was chosen in a private, closed process so that there has been no chance for open, public discussion or debate of alternate routing possibilities and tradeoffs; and

WHEREAS, Kinder Morgan identified properties in Lunenburg that it intends the Fitchburg Lateral to cross but declined to provide the town of Lunenburg with detailed and current information on the exact route it is proposing; and

WHEREAS, landowners are being asked to permit surveying on their property or to sign agreements to forfeit some of their property rights; and

WHEREAS, federal eminent domain powers may be used to forcibly take pipeline easements from unwilling landowners; and

WHEREAS, a high-pressure gas pipeline, by its nature, carries the potential for leak, rupture or devastating explosion causing untold damage to property and lives; and

WHEREAS, said pipeline goes against current Massachusetts commitments to renewable energies and combating global climate change; and

WHEREAS, our energy challenges are better addressed through investment in energy conservation measures as well as green and renewable energy solutions; and

WHEREAS, Lunenburg and our neighboring communities have adopted comprehensive master plans, zoning bylaws, wetlands bylaws and other land use controls to provide for the orderly development of our communities and the conservation and protection of our communities for future generations to come, as good stewards of the land should; and

WHEREAS, the elimination of environmental threats to our forests and streams from improvident developments is the fundamental purpose for the adoption of our land use controls and master plans; and

WHEREAS, Lunenburg and our neighboring communities have publicly and privately set aside large tracts of land and restricted their development for conservation and open space purposes as part of their master plans;

NOW, THEREFORE, be it RESOLVED that the Town of Lunenburg does hereby declare that it:

STANDS IN OPPOSITION to Kinder Morgan's proposed Energy Direct Project and to the Fitchburg Lateral; and

STANDS IN OPPOSITION to any effort to locate the proposed Fitchburg Lateral within Lunenburg's borders; and

FURTHER COMMITS to participate in and provide comments to any meetings held under the Federal Energy Regulatory Commission (FERC) review process with regard to the proposed Fitchburg Lateral to oppose Kinder Morgan's application; and

BE IT FURTHER RESOLVED that the Town of Lunenburg does hereby call upon its state and federal legislators and Executive branch officers to enact legislation and take any such other actions as are necessary to oppose such energy projects that go against our commitment to public safety, our environment, our economic well-being and our sense of community.